ORDINANCE NO.431
OF THE
CITY OF RECTOR, ARKANSAS

AN ORDINANCE TO REGULATE INDIVIDUALS OR GROUPS FROM HAVING PUBLIC OR PRIVATE SALES, COMMONLY REFERRED TO AS GARAGE SALES (FLEA MARKET), DEFINED HEREIN, ON ANY PROPERTY OWNED BY THE CITY OF RECTOR.

WHEREAS, the Rector City Council has had complaints regarding individuals or groups having garage sales (flea market) sales on city property.

WHEREAS, the Rector City Council has decided that it would be in the best interest if garage sales (flea market) sales be restricted and not be permitted on any city property.

THEREFORE, effective 1st day of July, 1996, no individual, groups or entities will be allowed to have any private sales, referred to as garage sales (flea markets), of any kind whatsoever, conducted on any property owned by the City of Rector.

SECTION1. (DEFINITION) Garage Sales (Flea Market), for purposes of this ordinance, is defined as personal property; sold through, or given away to individuals, what is customarily known as yard sales, carport sales, garage sales, porch sales, patio sales, items of a collectable nature, new and old items that could have monetary, nonmonetary. inherent. subjective or idiosyncratic value.

SECTION 2. Violations of this ordinance shall be a misdemeanor and the fine for each violation shall be Twenty-five Dollars ($25.00) to One-hundred Dollars ($100.00). Each day of such sale in violation of this ordinance shall constitute a separate offense.

SECTION 3. This ordinance being necessary for the health, safety and welfare of the citizens of Rector and necessary for effective meeting, there being a significant scheduling problem for members of the City Council within the City of Rector, an emergency is declared to exist and this ordinance shall take effect and being in force from and after its passage.

Passed this 1ST day of July, 1996.

Ron E. Kemp, Mayor

Attest:

Kenneth R. Burns

Kenneth Burns, City Recorder